

Tentative Rulings for September 16, 2026 Department 7

**To request oral argument, you must notify Judicial Secretary
Crystal Marias at (760) 904-5722
and inform all other counsel no later than 4:30 p.m.**

This court follows California Rules of Court, Rule 3.1308 (a) (1) for tentative rulings (see Riverside Superior Court Local Rule 3316). Tentative Rulings for each law & motion matter are posted on the Internet by 3:00 p.m. on the court day immediately before the hearing at [Riverside Superior Court-Tentative Rulings](#). If you do not have Internet access, you may obtain the tentative ruling by telephone at (760) 904-5722.

To request oral argument, no later than 4:30 p.m. on the court day before the hearing you must (1) notify the judicial secretary for Department 7 at (760) 904-5722 and (2) inform all other parties of the request and of their need to appear remotely, as stated below. If no request for oral argument is made by 4:30 p.m., the tentative ruling **will become the final ruling** on the matter effective the date of the hearing. **UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.**

For information and instructions on remote appearances via **ZOOM**, visit the court's website at [Riverside Superior Court-Remote Appearances](#)

You may also make a Telephonic Appearance: On the day of the hearing, call into one of the below listed phone numbers, and input the meeting number (followed by #):

- Call-in Numbers: 1-833-568-8864 (Toll Free), 1-669-254-5252,
1-669-216-1590, 1-551-285-1373 or 1-646-828-7666
- Meeting Number: **161 766 6465**

Please **MUTE** your phone until your case is called and it is your turn to speak. It is important to note that you must call fifteen (15) minutes prior to the scheduled hearing time to check in or there may be a delay in your case being heard.

Riverside Superior Court provides official court reporters for hearings on law and motion matters only for litigants who have been granted fee waivers and only upon their timely request. (See General Administrative Order No. 2021-19-1) Other parties desiring a record of the hearing must retain a reporter pro tempore.

1.

CASE #	CASE NAME	HEARING NAME
CVRI2506391	GEORGE, AN INDIVIDUAL VS KIA AMERICA, INC., A CALIFORNIA CORPORATION	MOTION FOR SUMMARY JUDGMENT

Tentative Ruling: Defendant Kia America's Motion for Summary Judgment/Adjudication is denied.

EVIDENTIARY OBJECTIONS

Plaintiffs object to ¶ 14 of the Decl. of Kyran Johal, wherein he states that Plaintiffs did not surrender the Vehicle as agreed, on the grounds it violates the best evidence and secondary evidence rules and is an improper legal conclusion. These objections are overruled.

Summary judgment is granted when a moving party establishes the right to entry of judgment as a matter of law. (C.C.P. § 437c(c).) A defendant moving for summary judgment bears the initial burden of proving that there is no merit to a cause of action by showing that one or more elements of the cause of action cannot be established or that there is a complete defense to that cause of action. (C.C.P. § 437c(p)(2); *Cucuzza v. City of Santa Clara* (2002) 104 Cal.App.4th 1031, 1037.) Importantly, a moving defendant establishes a right to summary judgment by showing that the plaintiff lacks the evidence to support at least one element of the cause(s) of action pleaded. (*Cole v. Town of Los Gatos* (2012) 205 Cal.App.4th 749, 756. See also *Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 855.)

Once the defendant has made such a showing, the burden shifts to the plaintiff to show that a triable issue of one or more material facts exists as to that cause of action or as to a defense to the cause of action. (*Aguilar, supra*, 25 Cal.4th at 849.) The opposing party may not rely upon the allegations or denials in its pleadings, but must "set forth the specific facts showing that a triable issue of material fact exists." (C.C.P. § 437c(p)(2).) Claims and theories not supported by admissible evidence do not raise triable issues of fact. (*Rochlis v. Walt Disney Co.* (1993) 19 Cal.App.4th 201, 219, disapproved on another ground in *Turner v. Anheuser-Busch, Inc.* (1994) 7 Cal.4th 1238.) However, while summary judgment is no longer considered a "disfavored" procedure, the moving party's evidence must be strictly construed, while the opposing party's evidence must be liberally construed. (*Binder v. Aetna Life Ins. Co.* (1999) 75 Cal.App.4th 832, 838.) If the plaintiff does not meet his burden of establishing a triable issue of material fact, summary judgment in favor of the defendant is appropriate.

Defendant argues that Plaintiffs' claims fail because Defendant made a prelitigation offer to repurchase the Vehicle in compliance with C.C.P. § 871.24, and though Plaintiffs accepted that offer, they did not ultimately allow Defendant to repurchase the Vehicle. In response, Plaintiffs argue that Defendant did not complete the repurchase of

the Vehicle within 60 days, so their lawsuit seeking, among other things, civil penalties, is proper.

C.C.P. § 871.24(a) provides that: “At least 30 days prior to the commencement of an action seeking civil penalties under subdivision (c) of Section 1794 of the Civil Code, the consumer shall . . . (1) Notify the manufacturer of the consumer’s name, the accurate Vehicle Identification Number (‘VIN’) of the motor vehicle, and a brief summary of the repair history and problems with the motor vehicle [and] (2) Demand that the manufacturer repurchase or replace the motor vehicle.” (C.C.P. § 871.24(a)(1)-(2).) Pursuant to C.C.P. § 871.24(e), a request for civil penalties under Civ. Code § 1794(c) shall not be allowed or maintained if (a) the manufacturer makes an offer of restitution or replacement of the vehicle, plus reasonable attorney’s fees and costs, within 30 days after receipt of the notice, and (b) the vehicle replacement or restitution is completed within 60 days from the date of receipt of the original notice. (C.C.P. § 871.24(e)(1).)

According to C.C.P. § 871.24(h), “[a]n action seeking restitution or replacement under Section 871.20 may be commenced without compliance with subdivision (a). In that event, the consumer shall have possession of the motor vehicle at the time of the filing of the complaint, and shall not seek civil penalties, whether by amendment of the complaint or otherwise. *If, however, notice is provided pursuant to subdivision (a) and the manufacturer fails to comply with their obligations under subdivision (e), the consumer may commence an action for restitution or replacement, including, but not limited to, civil penalties under subdivision (c) of Section 1794 of the Civil Code.*” (C.C.P. § 871.20(h) [emphasis added].)

The undisputed facts are as follows:

- On August 27, 2025, Plaintiffs sent a demand to Defendant to repurchase the Vehicle [UMF # 12];
- On August 28, 2025, Defendant acknowledged the demand and requested specific documents from Plaintiffs for review [UMF # 13];
- On September 2, 2025, Plaintiffs sent the requested documents to Defendant [UMF # 14];
- On September 11, 2025, Defendant agreed to repurchase the Vehicle [UMF # 15];
- On October 8, 2025, Plaintiffs returned to Defendant a signed version of the repurchase agreement [UMF # 16];
- On November 11, 2025, Defendant notified Plaintiffs that the Vehicle’s file was being sent to prepare for surrender of the Vehicle [UMF # 17]; and
- On November 12, 2025, Plaintiffs filed this action against Defendant [UMF # 18.]

Thus, there is no dispute that Plaintiffs complied with C.C.P. § 871.24(a) by sending a prelitigation demand for repurchase to Defendant, or that Defendant complied with C.C.P. § 871.24(e)(1) by making an offer to repurchase the Vehicle within 30 days of Plaintiffs' demand. (UMF ## 12-15.) There is also no dispute that Defendant did not comply with C.C.P. § 871.24(e)(2) by completing the repurchase within 60 days of the notice/demand. (UMF ## 12, 17-18.) Defendant argues, without citing any statutory or case law, that Plaintiffs are prohibited from bringing this suit despite Defendant's failure to complete the repurchase within 60 days because Plaintiffs waited 27 days before accepting Defendant's repurchase offer, cutting Defendant's compliance time in half. (Reply, p. 3:4-16.) However, § 871.24(e) prohibits a consumer from making request for civil penalties under Civ. Code § 1794(c) only if the manufacturer meets both requirements – it makes an offer to repurchase or replace the vehicle and completes the repurchase/replacement within 60 days of the notice. (C.C.P. § 871.24(e)(1)-(2).)

Furthermore, § 871.24(h) states that if the consumer makes the required demand “and the manufacturer fails to comply with their obligations under subdivision (e), the consumer may commence an action for restitution or replacement, including, but not limited to, civil penalties under subdivision (c) of Section 1794 of the Civil Code.” (C.C.P. § 871.20(h).) There is nothing in the statute that provides for a longer time to complete repurchase/replacement based on when the offer is accepted.

Statutory interpretation requires a three-step analysis. (*Herman v. Los Angeles County Metropolitan Transportation Authority* (1999) 71 Cal.App.4th 819, 825-826.) First, the court examines the actual language of the statute and gives the words their ordinary meaning; if the language is unambiguous, the language controls. (*Ibid.*) Second, if the meaning of the words is not clear, the courts must look to the legislative history. (*Ibid.*) Third, if the clear meaning is still not revealed, the court is to apply reason, practicality and common sense to interpret the words to make them workable and reasonable. (*Ibid.*) Here, the language of C.C.P. § 871.24 is unambiguous: a claim for civil penalties under the Song Beverly Act is only prohibited if the manufacturer both offers to repurchase/replace the vehicle *and* completes the repurchase/replacement within 60 days. It is undisputed that did not happen in this case. Therefore, Defendant fails to meet its burden of establishing that Plaintiffs' claims are precluded under C.C.P. § 871.24.

2.

CASE #	CASE NAME	HEARING NAME
CVRI2601705	LARKIN VS STATE OF CALIFORNIA, ACTING BY AND THROUGH THE CALIFORNIA HIGHWAY PATROL	DEMURRER

Tentative Ruling: Defendants' Demurrer as to the 1st Cause of Action is overruled; as to the 2nd Cause of Action it is sustained with 20 days leave to amend.

A general demurrer lies where the pleading does not state facts sufficient to constitute a cause of action. (CCP § 430.10(e).) In evaluating a demurrer, the court gives the pleading a reasonable interpretation by reading it as a whole and all of its parts in their context. (*Moore v. Regents of Univ. of Cal.* (1990) 51 Cal.3d 120, 125.) The court assumes the truth of all material facts which have been properly pleaded and of facts which may be inferred from those expressly pleaded. (*Crowley v. Katleman* (1994) 8 Cal.4th 666, 672.) A demurrer, however, does not admit contentions, deductions, or conclusions of fact or law. (*Daar v. Yellow Cab Co.* (1967) 67 Cal.2d 695, 713.)

Uncertainty

Under Code of Civil Procedure section 430.10(f), a special demurrer for uncertainty lies only if the pleading is so incomprehensible that the defendant cannot reasonably respond. The Complaint is not uncertain because it sets forth the ultimate facts required to apprise Defendants of the specific basis upon which relief is sought. For example, the pleading identifies Officers Garcia and Doe 1 as CHP employees, details the observable physical symptoms of medical distress Decedent exhibited upon their arrival, alleges that the officers detained Decedent with actual knowledge that he required urgent medical aid, and specifies an unreasonable 23-minute delay in calling emergency medical services that contributed to his death. (Compl. ¶¶ 13-16, 20 and 22). The inclusion of additional references to Doe defendants or emergency personnel does not obscure or render unintelligible these direct factual claims against the named Defendants. Furthermore, Defendants' ability to detail the precise timeline, facts, and underlying legal theories within their own moving papers demonstrates that the Complaint is sufficiently definite to enable a clear response (*Khoury, supra*, 14 Cal.App.4th 612, 616.) These causes of action are not so unintelligible that Moving Defendants cannot respond.

First Cause of Action – Negligence

The elements of a cause of action for negligence are: (1) a legal duty to use due care; (2) breach of such duty; (3) the breach was the proximate or legal cause of resulting injuries. (*Ladd v. County of San Mateo* (1996) 12 Cal.4th 913, 917.) "Negligence may be alleged in general terms; that is, it is sufficient to allege an act was negligently done without stating the particular omission which rendered it negligent. There is no requirement that [the plaintiff] identify and allege the precise moment of the injury, or the exact nature of the wrongful act." (*Hahn v. Mirda* (2007) 147 Cal.App.4th 740, 747-748.) In order to state a cause of action against a government entity, every fact essential to the existence of statutory liability must be pled with particularity. (See *Searcy v. Hemet Unified School Dist.* (1986) 177 Cal.App.3d 792, 802.)

However, "[t]ort claims may not be maintained against a public entity unless they are based on a statute or are required by the federal or state constitutions." (*Lundeen Coatings Corp. v. Department of Water & Power* (1991) 232 Cal.App.3d 816, 832.) Unless provided by statute, a public entity is not liable for an injury. (Gov. Code § 815(a).) A public entity is liable for injury proximately caused by an act or omission of an employee of the public entity within the scope of his or her employment if the act or omission would have given rise to a cause of action against the employee, unless the

employee is immune. (Gov. Code § 815.2.) There is no common law tort liability for public entities—only statutory. (*Green Valley Landowners Association v. City of Vallejo* (2015) 241 Cal.App.4th 425, 441-442.)

The first cause of action identifies Gov. Code § 815.2 as the basis for liability for the State. (Complaint, ¶ 28.) This is sufficient for pleading purposes regardless of Moving Defendants arguments regarding Health and Safety Code § 1797.84 (as cited in the complaint) not imposing a mandatory duty on public entities or whether the specific allegation regarding negligence hiring, supervision, and training is a proper theory within the first cause of action. In determining whether complaint is sufficient, as against demurrer, on ground that it does not state facts sufficient to constitute a cause of action, if it appears that plaintiff is entitled to any relief against defendant, the complaint will survive the demurrer, even if the facts may not be clearly stated or though plaintiff may demand relief to which he is not entitled under facts alleged. (*Augustine v. Trucco* (1954) 124 Cal.App.2d 229, 237.) In fact, it is error for trial court to sustain demurrer when plaintiff has stated cause of action under any possible legal theory. (*Howard Jarvis Taxpayers' Assn. v. Board of Supervisors* (1996) 41 Cal.App.4th 1363, 1372.)

As to Officer Garcia, Moving Defendants argue various immunities shield Officer Garcia from liability and that there is no duty. The general rule is that, “one has no duty to come to the aid of another. A person who has not created a peril is not liable in tort merely for failure to take affirmative action to assist or protect another unless there is some relationship between them which gives rise to a duty to act.” (*Williams v. State of California* (1983) 34 Cal.3d 18, 23.) A police officer, paramedic or other public safety worker is as much entitled to the benefit of this general rule as anyone else. (*Eastburn v. Regional Fire Protection Authority* (2003) 31 Cal.4th 1175, 1185; see also *Zepeda v. City of Los Angeles* (1990) 223 Cal.App.3d 232.) This rule and the statutory immunities identified in the demurrer notwithstanding, liability may be imposed “if an officer voluntarily assumes a duty to provide a particular level of protection, and then fails to do so [citations], or if an officer undertakes affirmative acts that increase the risk of harm to the plaintiff.” (*Zelig v. County of Los Angeles* (2002) 27 Cal.4th 1112, 1129.) The complaint alleges such an undertaking via Officer Garcia detaining Decedent and failing to recognize what are alleged to be obvious signs of medical distress. (Complaint, ¶¶ 13-14.) This is sufficient.

Second Cause of Action – Wrongful Death

As to the second cause of action, Plaintiff fails to plead an actionable statutory basis for liability against the public entities and the officer. Under the Government Claims Act (Gov. Code, § 815, subd. (a)), all public entity tort liability in California is strictly statutory, abolishing common law tort liability against public entities. Direct tort liability against a public entity such as the California Highway Patrol (CHP) must be grounded in a specific statute declaring liability or setting forth a specific duty of care. Here, Plaintiff's reliance on Health and Safety Code section 1797.84 fails because that statute is merely definitional under the Emergency Medical Services Act and does not impose a mandatory statutory obligation or duty of care on CHP or its peace officers.

Furthermore, peace officers owe no general legal duty to members of the public absent a special relationship, which Plaintiff has failed to establish. Because a claim for wrongful death under Code of Civil Procedure section 377.60 is wholly derivative of an underlying actionable tort or statutory breach, Plaintiff's failure to establish statutory liability or a viable underlying negligence claim against Officer Garcia or CHP deprives the wrongful death cause of action of its essential legal foundation, rendering it insufficient as a matter of law. (*County of San Bernardino v. Superior Court* (2022) 77 Cal.App.5th 1100, 1107-1108; see also *County of Santa Clara v. Superior Court* (2023) 14 Cal.5th 1034, 1045.)